TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
AUGUST 30, 2021
MINUTES

STAFF REPORT

Present: Barry Wolff, Chair, Stephen Duke, Aaron Butner, Elliott Barrow, Megan Stevens, Julian Hopkins.
Absent: Stephen Wood.
Staff: Michael Robertson, Kara Browder, Lynnette Lynes

Mr. Wolff called the meeting to order at 6:00 pm.

A. Approval of Agenda

- *Mr. Duke moved for approval of the agenda. Mr. Hopkins seconded the motion. All in favor.*

B. Approval of Minutes

- *Mr. Hopkins moved for approval of the minutes. Mr. Duke seconded the motion. All in favor.*

C. Public Comment

- There being no comments, Mr. Wolff continued with the agenda.

D. General Correspondence

All correspondence received was linked to the agenda and distributed to the Board.

E. Explanation of Procedures

- Mr. Wolff explained the procedures with the public.

F. Administration of Oath

- Mr. Wolff administered the oath to those speaking.

G. Business

1. **Case A-5-2021, 234 Middle Street, TMS# 532-09-00-025. Appeal of Administrative Official's refusal to allow modification of the tree protection zone for a 53-inch live oak tree or, in the alternative, to allow removal of 53-inch live oak tree. Record of Zoning Determination Correspondence**
2. **Case V-19-2021, 234 Middle Street, TMS# 532-09-00-025. Request for relief from the strict application of §156.227 (A)(6) Modifications to Tree Protection Zones and §156.225 Removal of Historic and Significant Trees to allow encroachment into the tree protection zone or removal of the 53-inch Live Oak tree.**

These items were withdrawn by staff.

3. **Case V-38-21, 851 Woodgreen Circle, TMS# 562-01-00-112. Request for relief from the strict application of §156.303 to allow existing 1-foot front yard encroachment. Applicant also seeks confirmation that the setbacks shown on site plan are consistent with §156.007 Definitions, Building Line.**

- Ms. Browder reviewed staff comments with the Board.
- Mr. Rubin Comacho, owner, reviewed the request with the Board.
- There being no comments, Mr. Wolff closed public comment.
- *Mr. Hopkins moved for approval based on findings for that the one-foot encroachment as would not be a detriment and the encroachment was previously approved. Mr. Duke seconded the motion. All in favor.*

4. **Case V-39-21, 214 Haddrell Street, TMS# 517-15-00-127. Request for relief from the strict application of §156.303 to allow a 16-foot rear yard encroachment. The ordinance requires a 30-foot rear setback.**

- Ms. Browder reviewed staff comments with the Board.
- Ms. Roshelle Elias, owner, reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comment.

- *Ms. Stevens for denial of the request based on the findings that all of the criteria for a hardship has not been met as the pool would not prohibit the utilization of the property. Mr. Hopkins seconded the motion. Motion passed on at 5 to 1 vote with Mr. Wolff, Mr. Barrow, Mr. Hopkins, Ms. Stevens, and Mr. Duke in favor; Mr. Butner opposed.*

H. Approval of Final Orders

- The Board signed final orders.

There being no further business, the meeting adjourned at 6:40 pm.

Submitted by,
L. Lynes
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